

November 05, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12573
(SEVENTH REVISION)

EXPIRATION DATE: 2019-02-28

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Ball Metalpack LLC
Westminster, CO
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, marking, sale and use of a non-refillable, non-DOT specification inside metal container conforming with all regulations applicable to a DOT specification 2Q, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: § 173.304(d) and § 173.306(a)(3) in that the prescribed packaging is not authorized, except as specified herein.

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5. BASIS: This special permit is based on the application of Ball Metalpack LLC dated January 27, 2015, submitted in accordance with § 107.109, and additional information submitted October 11, 2018.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, non-flammable	2.2	UN1950	n/a
1,1,1,2 Tetrafluoroethane or Refrigerant gas R 134a	2.2	UN3159	n/a

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a non-refillable, non-DOT specification inside metal container conforming with United States Can Company drawing numbers 202VCND and 200PRM on file with the Approvals and Permits Division (APD), and DOT Specification 2Q (§ 178.33a) except as follows:

§ 178.33a-2 *Type and size.*

(a) * * *

(b) The maximum capacity of the containers manufactured under this special permit may not exceed 23.8 cubic inches (13.3 fluid ounces). The maximum diameter may not exceed 2.1 inches.

§ 178.33a-6 *Manufacture.*

(a) * * *

(b) * * *

(c) Ends: The dome must be equipped with a pressure relief mechanism (PRM) consisting of radial scores on the top double seam, as depicted in the drawing on file with the APD. The bottom must be designed to buckle at pressures greater than the pressure at which the dome buckles and vents.

§ 178.33a-7 *Wall thickness.*

(a) The minimum wall thickness for containers manufactured under this special permit is 0.0085 inches.

§ 178.33a-8 *Tests.*

(a) Each 2500 containers or less, successively produced as a batch or part thereof must constitute a lot. Two containers, one with a PRD and one without a PRD, taken randomly from each lot and complete with the ends assembled must be pressure tested to destruction. For containers fitted with a PRD, the dome may not buckle below 220 psig. Upon buckling, the dome must vent, and the bottom may not buckle. The burst pressure of containers without a PRD may not be less than 320 psig.

(b) If either of the test containers fails to meet the above requirements, the lot must be rejected. However, an additional 5 randomly selected pairs of containers from that lot may be pressure tested to qualify that lot. If any of the additional test containers fail the pressure test, that lot must be rejected.

§ 178.33a-9 *Marking.*

(a) * * *

(1) Containers must be marked "DOT-SP 12573" in lieu of "DOT 2Q".

(2) * * *

b. TESTING: Prior to shipment, each completed container must be heated until the pressure in the container is equivalent to the equilibrium pressure of the lading at 130°F. Lading equilibrium pressure may not exceed 198 psig at 130°F. Acceptable containers must show no evidence of leakage, distortion or other defect.

c. OPERATIONAL CONTROLS: Each packaging must be prepared and shipped in accordance with the following:

(1) The liquid content of the lading may not completely fill the container at 130 °F.

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(2) The container must be packed in a strong outside packaging as prescribed in § 173.301(a)(9).

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permit and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. MARKING: Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 12573".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft and cargo vessel used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials

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incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/TG